

**Court No. - 40**

**Case :-** WRIT - C No. - 16497 of 2023

**Petitioner :-** Anju Mishra

**Respondent :-** State Of U.P. And 4 Others

**Counsel for Petitioner :-** Ambikesh Kumar Sharma

**Counsel for Respondent :-** C.S.C.,Alok Mishra

**Hon'ble Mahesh Chandra Tripathi,J.**

**Hon'ble Manjive Shukla,J.**

Heard learned counsel for the petitioner, learned Standing Counsel for the State and Sri Alok Mishra, learned counsel appearing on behalf of respondent no. 3-Power Corporation.

Present writ petition has been preferred for a direction to the respondent no. 5 to take necessary action in pursuance of the endorsement of respondent nos. 3 and 4 within stipulated.

Learned counsel for the petitioner submits that the petitioner is tenant of House No. 15, Mal Godam Road, Shanti Nagar, Etah, Police Station Kotwali, District Etah. He applied for fresh electricity connection in his name. He submits that he moved an application before the respondent authorities on 6.7.2022 for issuing fresh electricity connection in which the Tehsildar, Etah made an endorsement on 7.7.2022 directing the respondent no. 5 to enquire the matter and take necessary action, in accordance with law.

Learned counsel for the respondents submits that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained Act. The petitioner can pursue the remedy as is available to him under the Electricity Act, 2003 read with provisions of U.P. Electricity Code, 2005.

In view of above, without expressing any opinion on the merits of the and considering the facts and circumstances of the case and with the consent of parties, this writ petition is disposed of finally with a direction to the Adhishashi Abhiyanta, Dakshinanchal Vidyut Vitran Nigam Ltd., Vidyut Vitran Kand, Etah, (respondent no.5) to look into the grievance of the petitioner and redress the same in

accordance with law within a period of three weeks from the date of production of certified copy of this order before him.

**Order Date :- 16.5.2023**

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